



Protest nr: 08

Class	Nacra 17	
Protestor	AUS 77 - Archie Gargett	
Protestee	ESP 489 - Joan Cardona	
Witnesses		
Type	protest	
Incident	We had completed a gybe from port to starboard near the bottom gate and were in H1 to try get foiling. ESP 489 was overtaking from windward and clear behind whilst foiling and did not keep clear when we called them up as we were sailing a higher nom foiling mode. I had to bear away to keep clear of hitting their hull which meant we lost all apparent wind resulting in being unable to foil in these conditions.	
Date/Time of hearing	20 Apr 2026 at 16:50	
Location	Jury Rooms Base Nautique 1st floor	
Procedural matters	1. The panel of the International Jury was composed in accordance with RRS N1.4(b). 2. AUS 77 was represented by Archie GARGETT. 3. ESP 489 was represented by Joan CARDONA. 4. Diego Yubero (ESP support person) attended the hearing as an observer. 5. Sarah HOFFMAN (AUS 77's crew) gave evidence as a witness for AUS 77.	
Facts found	1. The conditions at the time of the incident were 6 knots of wind and flat water. 2. On the first downwind leg, approaching the downwind gate, both AUS 77 and ESP 489 were sailing downwind on starboard tack, with AUS 77 clear ahead of ESP 489. 3. AUS 77 was attempting to foil and sailing a higher and slower course than ESP 489, which was foiling. 4. ESP 489 established an overlap less than 4m to windward of AUS 77 and kept her converging course. 5. When the boats were 1m away, AUS 77 bore away. 6. There was no contact, damage or injury. 7. Neither boat took a penalty.	
Conclusion	ESP 489 to windward failed to keep clear of AUS 77 to leeward, and broke RRS 11.	
Rules applicables	RRS 11	
Jury Decision:	ESP 489 is DSQ in race 2.	
Date of decision:	20 Apr 2026 at 17:28	



Jury members	Bence Böröcz (IJ-HUN), Johanna Poksi (IJ-EST), Yoann Peronneau (IJ-FRA)
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Signature:

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